

Meva Ram v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 15 July 2014 · 2014 SCC OnLine All 11279 · Writ - C No. 35878 of 2014 · **Writ petition disposed of by consent; connection to be transferred on clearing all dues**

HEADNOTE

The transfer/mutation of a tubewell electricity connection under Clause 4.44 of the U.P. Electricity Supply Code, 2005 can be effected only on clearance of all dues, and the competent authority is the Executive Engineer of the Division. In a family dispute over a connection originally standing in the names of two co-holders (one since deceased), the parties agreed, and the Court directed, that the connection be transferred to the person willing to undertake all liabilities (the deceased co-holder's son), the Executive Engineer realising the entire dues before effecting the transfer and thereafter forthwith restoring supply (the matter being urgent given the drought and unsown paddy). A connected contempt application was discharged on the consent recorded.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.44

Transfer/mutation of a connection on clearance of all dues by the Executive Engineer

QUESTION

On what conditions, and by whom, can an electricity connection be transferred/mutated to a new holder under the Code?

HOLDING

Mutation/transfer of a connection under Clause 4.44 requires the clearance of all dues and is to be done by the competent authority, the Executive Engineer of the Division, on completion of the requisite formalities. Here, by consent, the connection is to be transferred to the co-holder's son who undertook all liabilities, the Executive Engineer realising the entire dues before transfer and then forthwith restoring supply. ¶ (order; quoting the 9.5.2014 order)

LIMITING FACTS

Connection originally in the names of Ram Das (deceased) and Meva Ram; the petitioner disclaimed interest and consented to transfer to the nephew (Ganga Dayal), who undertook all liabilities; consent order, so no contested ratio.

PRINCIPLE TAGS

connection-transfer-requires-clearance-of-arrears-clause-4.44 A connection can be transferred/mutated to a new holder only after all dues are cleared, by the Executive Engineer under Clause 4.44; the incoming holder here undertook the liabilities. ¶ (order)